

(Defendants' Moving Papers, pgs. 14:24-15:4.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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Tentative Ruling

Re: ***City of Fresno v. Biggie Burrito Taqueria et al.***
Superior Court Case No. 26CECG00915

Hearing Date: May 28, 2026 (Dept. 502)

Motion: By Defendant Joseph Daniel Briseno to Quash Service of
Summons and Complaint

Tentative Ruling:

To grant. (Code Civ. Proc., § 418.10.) The clerk of the court is directed to strike the April 2, 2026, proof of service of summons as to defendant Joseph Daniel Briseno. Plaintiff City of Fresno is directed to effect proper service of summons and the Complaint within 30 days of service of the order by the clerk.

Explanation:

Defendant Joseph Daniel Briseno ("Defendant") seeks to quash service of summons pursuant to Code of Civil Procedure section 418.10, subdivision (a), which provides that a party may file a motion to quash service of summons on the grounds that a court lacks personal jurisdiction where service on that party was defective. (Code Civ. Proc., § 418, subd. (a)(1).)

Here, Plaintiff contends that the proof of service of summons filed by plaintiff City of Fresno ("Plaintiff") is defective. The proof of service of summons, filed April 2, 2026 attests that service was effected by substitute service on March 25, 2026.

Substituted service of the summons and complaint on an individual is proper under Code of Civil Procedure section 415.20, subdivision (b), which states in relevant part:

If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served... a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left.

Item 5(b)(5) of the proof of service form was not marked, which indicates that there was not an attempt to personally serve Defendant. Plaintiff fails to make a sufficient

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Issued By: KCK on 05/27/26
(Judge's initials) (Date)